

HOUSE No. 638

The Commonwealth of Massachusetts

PRESENTED BY:

Jay D. Livingstone

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to protect library patron privacy.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Jay D. Livingstone</i>	<i>8th Suffolk</i>	<i>1/15/2025</i>
<i>Lindsay N. Sabadosa</i>	<i>1st Hampshire</i>	<i>2/4/2025</i>
<i>Adrienne Pusateri Ramos</i>	<i>14th Essex</i>	<i>3/6/2025</i>
<i>Meghan K. Kilcoyne</i>	<i>12th Worcester</i>	<i>7/30/2025</i>

HOUSE No. 638

By Representative Livingstone of Boston, a petition (accompanied by bill, House, No. 638) of Jay D. Livingstone, Lindsay N. Sabadosa and Adrienne Pusateri Ramos for legislation relative to the privacy of library records. Education.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to protect library patron privacy.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 7 of chapter 78 of the General Laws is hereby amended by striking
2 the third sentence.

3 SECTION 2. Said chapter 78 is hereby amended by inserting after section 7 the following
4 section:-

5 Section 7A.

6 That part of the records of a public library which reveals the identity and intellectual
7 pursuits of a person using such library shall not be a public record as defined by clause Twenty-
8 sixth of section seven of chapter four. Access to such part of such library records shall be granted
9 only with a warrant issued pursuant to chapter 276 or under exigent circumstances.